

23SMCV03296 23SMCV03296

County: los-angeles

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Case Number: 23SMCV03296 Hearing Date: August 20, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 200

KAVEH KEVIN JEBELI,

Plaintiff,

v.

JEWISH EDUCATIONAL MOVEMENT, et al.,

Defendants.

Case No.: 23SMCV03296

Hearing Date: August 20, 2026

[TENTATIVE] ORDER RE:

PLAINTIFF'S MOTION FOR

LEAVE TO AMEND COMPLAINT

BACKGROUND

This case arises from property losses resulting from a fire at a warehouse/storage unit. Plaintiff Kaveh Kevin Jebeli and Defendant Jewish Educational Movement (JEM) entered into a commercial lease for warehouse/storage space at 9041 West Pico Blvd., Los Angeles, California 90035 ("the Property"). Plaintiff used the unit to store over \$1,396,136.00 worth of computer and computer related equipment and other items he used for his business. He was also storing boxes of men's clothing for his father-in-law, valued at approximately \$100,000.

According to Plaintiff, Defendant rented space adjacent to the Property to a CBD oil manufacturer who used his premises to manufacture CBD oil, a highly flammable substance, even though the Property was not zoned for this use. Plaintiff claims Defendant knew or should have known of the illegal use of the adjacent unit, which created a hazardous condition.

Shortly after Plaintiff moved his property into the unit, the adjacent unit caught fire, burning all of Plaintiff's inventory. Plaintiff was able to recover \$380,000.00 from his insurance minus 10 percent adjuster fees, but \$1,016,136 in lost inventory remains outstanding. To date, Defendant has failed and refused to reimburse Plaintiff under the Lease. Defendant has also refused to return Plaintiff's security deposit.

This action ensued. The operative (first amended) complaint alleges claims for (1) gross negligence, (2) breach of written contract, (3) bad faith retention of security deposit under Cal. Civ. Code section 1950.5 and (4) declaratory relief. In addition to suing JEM, Plaintiff has also sued Defendant Kevin Illulian who Plaintiff claims is an alter ego of JEM.

Defendants have moved for summary judgment, which is currently set for hearing on September 10, 2026. One of the arguments raised in Defendants' motion is that Plaintiff's third cause of action is brought under Cal. Civ. Code section 1950.5, which applies only to residential leases.

This hearing is on Plaintiff's motion to amend his complaint. Plaintiff argues that his citation to section 1950.5 was a typographical error, and he should be allowed to amend his complaint to cite to the correct statute, section 1950.7. Plaintiff asserts that where a claim is legally insufficient, the Court is required to allow leave to amend to cure the defect before ruling on a motion for summary judgment.

LEGAL STANDARD

Under California Rules of Court Rule, Rule 3.1324, subdivision (a), a motion to amend a pleading shall:

(1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and

(3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

In addition, under California Rules of Court, Rule 3.1324, subdivision (b), a separate declaration must accompany the motion and must specify:

(1) the effect of the amendment;

(2) why the amendment is necessary and proper;

(3) when the facts giving rise to the amended allegations were discovered; and

(4) the reasons why the request for amendment was not made earlier.

The Court's discretion to grant leave "should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit." (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1047.) Ordinarily, the Court will not consider the validity of the proposed amended pleading in ruling on a motion for leave since grounds for a demurrer or motion to strike are premature. The Court, however, does have discretion to deny leave to amend where a proposed amendment fails to state a valid cause of action as a matter of law and the defect cannot be cured by further amendment. (See California Casualty General Ins. Co. v. Superior Court (1985) 173 Cal.App.3d 274, 281 (overruled on other grounds by Kransco v. American Empire Surplus Lines Ins. Co. (2000) 23 Cal.4th 390).)

DISCUSSION

The Court denied Plaintiff's earlier motion for leave to amend because it was procedurally defective. Plaintiff has now submitted a declaration that contains the information required by California Rules of Court, Rule 3.1324, subdivision (b).

Defendant argues that Plaintiff's motion is a motion for reconsideration, and Plaintiff failed to comply with the requirements of Cal. Civ. Proc. Code section 1008. However, the Court's denial of Plaintiff's earlier filed motion was without prejudice, and therefore, section 1008 does not apply. (See Farber v. Bay View Terrace Homeowners Ass'n (2006) 141 Cal. App. 4th 1007, 1015; Clausen v. San Francisco Unified Sch. Dist. (1990) 221 Cal. App. 3d 1224, 1232; Chambreau v. Coughlan (1968) 263 Cal. App. 2d 712, 717-18.) Where there is a denial without prejudice, the Court does not rule on the merits, and therefore, there is no need to set forth additional or new facts. (See, e.g., Chambreau, 263 Cal. App. 2d at 718.)

Turning to the merits of the motion, the Court concludes that leave to amend should be granted. As Plaintiff notes, courts routinely grant leave to amend to cure a legal insufficiency raised in a motion for summary judgment. (Prue v. Bradley Company/San Diego, Inc. (2015) 242 Cal.App.4th 1367, 1384-1385; Hobson v. Raychem Corp. (1999) 73 Cal.App.4th 614, 625.) Where there is a technical defect in the complaint that can be cured, "the action should not be dismissed. Rather, [the motion for summary judgment] should be treated the same as if a motion for judgment on the pleadings were granted. Plaintiff should be given leave to amend the complaint to cure the defect (assuming the defect is curable). Summary judgment should be stayed pending the amendment." (Prue, 242 Cal.App.4th at 1384.)

The California Supreme Court has noted regarding "procedures which apply to demurrers, motions for summary judgment, and motions for judgment on the pleadings, the trial court should ... allow an opportunity to amend the complaint to include the missing allegations [that make a complaint legally insufficient]." (College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 719, fn. 5.) Further, a request for leave to amend could be made as late as the time of the hearing or before entry of judgment. (Prue, 242 Cal.App.4th at 1385.)

Defendants do not dispute that Plaintiff is seeking to cure a legal insufficiency in his complaint. Rather, Defendants argue that Plaintiff delayed in seeking the amendment and they will be unduly prejudiced. According to Defendants, Plaintiff knew from the outset that this case involved a commercial lease but failed to amend their complaint even though the action has been pending for over three years. However, delay alone is insufficient grounds for denial of leave to amend. If the delay in seeking the amendment has not misled or prejudiced the other side, the liberal policy of allowing amendments prevails. Indeed, it is an abuse of discretion to deny leave in such a case even if sought as late as the time of trial. (Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564-565.)

As to Defendants' argument that they will be prejudiced, it is unclear to the Court how that can be so. There is no dispute that the Property is a commercial one. Defendants knew from the outset of the litigation that their own Property was zoned for commercial use. Accordingly, there should be no additional discovery that Defendants need. To the extent Defendants would have to revise their motion for summary judgment, that is also not an adequate basis to deny leave to amend. Otherwise, the

Court would have to deny leave to amend in any case where there is a motion for summary judgment that has been filed which would nullify the holdings in *College Hospital, et al.*

Defendants' reliance on *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 176 is misplaced. *Melican* involved an amendment seeking to assert an entirely new theory of liability. The amendment here does not seek to assert a new theory of liability. Plaintiff's claim for bad faith retention of security deposit remains the same. The only change is the citation to the correct legal statute, which applies to commercial leases. Clearly, Defendants were fully aware that their lease with Plaintiff was a commercial one.

Indeed, the *Melican* court distinguished its facts from *Kirby v. Albert D. Seeno Construction Co.* (1992) 11 Cal.App.4th 1059, where the court held that "[w]here the complaint is challenged and the facts indicate that a plaintiff has a good cause of action which is imperfectly pleaded, the trial court should give the plaintiff an opportunity to amend." (*Id.* at 1067.) The *Melican* court noted that in *Kirby* the motion for summary judgment was not based on any declaration or extrinsic evidence, but was based purely on the fact that the complaint was imperfectly pleaded.

So it is here. Defendants' argument that Plaintiff's bad faith retention claim is defective because it cites to the incorrect statute is not based on any declaration or extrinsic evidence, but is based solely on the language in the complaint. As such, it functions as a motion for judgment on the pleadings, and in such cases, there is a liberal policy to allow amendment where a claim can be sufficiently stated.

CONCLUSION AND ORDER

Based on the foregoing, the Court GRANTS Plaintiff's motion for leave to file the second amended complaint within 5 days.

IT IS SO ORDERED.

DATED: August 20, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court